

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1210

Introduced by Clements, 2.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Cash Reserve Fund; to amend section
- 2 84-612, Revised Statutes Supplement, 2025; to eliminate obsolete
- 3 provisions; and to repeal the original section.
- 4 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 84-612, Revised Statutes Supplement, 2025, is
2 amended to read:

3 84-612 (1) There is hereby created within the state treasury a fund
4 known as the Cash Reserve Fund which shall be under the direction of the
5 State Treasurer. The fund shall only be used pursuant to this section.

6 (2) The State Treasurer shall transfer funds from the Cash Reserve
7 Fund to the General Fund upon certification by the Director of
8 Administrative Services that the current cash balance in the General Fund
9 is inadequate to meet current obligations. Such certification shall
10 include the dollar amount to be transferred. Any transfers made pursuant
11 to this subsection shall be reversed upon notification by the Director of
12 Administrative Services that sufficient funds are available.

13 (3) In addition to receiving transfers from other funds, the Cash
14 Reserve Fund shall receive federal funds received by the State of
15 Nebraska for undesignated general government purposes, federal revenue
16 sharing, or general fiscal relief of the state.

17 (4) No funds shall be transferred from the Cash Reserve Fund to
18 fulfill the obligations created under the Nebraska Property Tax Incentive
19 Act unless the balance in the Cash Reserve Fund after such transfer will
20 be at least equal to five hundred million dollars.

21 ~~(5) The State Treasurer shall transfer ten million dollars from the~~
22 ~~Cash Reserve Fund to the School Safety and Security Fund as soon as~~
23 ~~administratively possible after September 2, 2023, on such dates and in~~
24 ~~such amounts as directed by the budget administrator of the budget~~
25 ~~division of the Department of Administrative Services.~~

26 (5) ~~(6)~~ The State Treasurer shall transfer two million four hundred
27 twenty-five thousand dollars from the Cash Reserve Fund to the Nebraska
28 Public Safety Communication System Revolving Fund on or after July 1,
29 2024, but before June 30, 2025, on such dates and in such amounts as
30 directed by the budget administrator of the budget division of the
31 Department of Administrative Services.

1 ~~(6)~~ ~~(7)~~ The State Treasurer shall transfer four million dollars from
2 the Cash Reserve Fund to the General Fund on or after July 1, 2024, but
3 before June 30, 2025, on such dates and in such amounts as directed by
4 the budget administrator of the budget division of the Department of
5 Administrative Services.

6 ~~(7)~~ ~~(8)~~ The State Treasurer shall transfer twenty-nine million four
7 hundred fifty-eight thousand eight hundred dollars from the Cash Reserve
8 Fund to the Nebraska Capital Construction Fund on or after July 1, 2024,
9 but before June 30, 2025, on such dates and in such amounts as directed
10 by the budget administrator of the budget division of the Department of
11 Administrative Services.

12 ~~(8)~~ ~~(9)~~ The State Treasurer shall transfer three million five
13 hundred thousand dollars from the Cash Reserve Fund to the Health and
14 Human Services Cash Fund on or after July 1, 2024, but on or before June
15 30, 2025, on such dates and in such amounts as directed by the budget
16 administrator of the budget division of the Department of Administrative
17 Services.

18 ~~(9)~~ ~~(10)~~ The State Treasurer shall transfer three million two
19 hundred fifty thousand dollars from the Cash Reserve Fund to the State
20 Insurance Fund as soon as possible after April 2, 2024, on such dates and
21 in such amounts as directed by the budget administrator of the budget
22 division of the Department of Administrative Services.

23 ~~(10)~~ ~~(11)~~ The State Treasurer shall transfer twenty-five million
24 dollars from the Cash Reserve Fund to the Governor's Emergency Cash Fund
25 on or before June 30, 2025, on such dates and in such amounts as directed
26 by the budget administrator of the budget division of the Department of
27 Administrative Services.

28 ~~(11)~~ ~~(12)~~ The State Treasurer shall transfer ten million dollars
29 from the Cash Reserve Fund to the Governor's Emergency Cash Fund on or
30 after July 1, 2025, but before June 30, 2026, on such dates and in such
31 amounts as directed by the budget administrator of the budget division of

1 the Department of Administrative Services.

2 ~~(12)~~ ~~(13)~~ The State Treasurer shall transfer forty-five million
3 eight hundred ninety-seven thousand dollars from the Cash Reserve Fund to
4 the Nebraska Capital Construction Fund on or before June 30, 2026, on
5 such dates and in such amounts as directed by the budget administrator of
6 the budget division of the Department of Administrative Services.

7 ~~(13)~~ ~~(14)~~ The State Treasurer shall transfer one hundred thousand
8 dollars from the Cash Reserve Fund to the Self-Insured Liability Fund on
9 or before June 30, 2025, on such dates and in such amounts as directed by
10 the budget administrator of the budget division of the Department of
11 Administrative Services.

12 ~~(14)~~ ~~(15)~~ It is the intent of the Legislature to transfer two
13 hundred million dollars from the Cash Reserve Fund to the
14 Transformational Project Fund in increments necessary to fund the
15 distributions authorized in section 81-12,193, beginning in fiscal year
16 2027-28 and continuing each fiscal year until such distribution
17 requirements are met.

18 ~~(15)~~ ~~(16)~~ The State Treasurer shall transfer one hundred forty-seven
19 million dollars from the Cash Reserve Fund to the General Fund on or
20 after July 1, 2026, but before June 30, 2027, on such dates and in such
21 amounts as directed by the budget administrator of the budget division of
22 the Department of Administrative Services.

23 ~~(16)~~ ~~(17)~~ The State Treasurer shall transfer five million dollars
24 from the Cash Reserve Fund to the General Fund on or after July 1, 2026,
25 but before June 30, 2027, on such dates and in such amounts as directed
26 by the budget administrator of the budget division of the Department of
27 Administrative Services.

28 **Sec. 2.** Original section 84-612, Revised Statutes Supplement, 2025,
29 is repealed.